

26TRCV00402 26TRCV00402

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 26TRCV00402 Hearing Date: August 4, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SCOTT METZGER

;

Plaintiff,

vs.

tesla, inc.

;

Defendant.

Case

No.:

26TRCV00402

Hearing

Date:

August
4, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT TESLA, INC.'S MOTION TO COMPEL
BINDING ARBITRATION

(2)

DEFENDANT TESLA, INC.'S REQUEST TO STAY
PROCEEDINGS PENDING ARBITRATION

MOVING PARTY: Defendant, Tesla, Inc.

RESPONDING

PARTY: No opposition.

(1)

Defendant

Tesla, Inc.'s Motion to Compel Binding Arbitration is GRANTED pursuant to Code
of Civil Procedure sections 1281 and 1281.2.

(2)

Defendant

Tesla, Inc.'s Request to Stay Proceedings Pending Arbitration is GRANTED
pursuant to Code of Civil Procedure section 1281.4.

The Court considers the moving
papers filed on April 3, 2026. To date,
no opposition brief has been filed.

BACKGROUND

Factual Background

On February 3, 2026, plaintiff Scott Metzger ("Plaintiff") filed the Complaint against defendants Tesla, Inc. ("Tesla") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Subdivision (d) of Civil Code section 1793.2; (2) Violation of Subdivision (b) of Civil Code section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code section 1793.2; (4) Breach of Express Written Warranty – Civil Code Section 1791.2, Subdivision (a), Section 1794; and (5) Breach of the Implied Warranty of Merchantability – Civil Code Section 1791.1, Section 1794.

REQUEST FOR JUDICIAL NOTICE

The Court takes Judicial Notice pursuant to Evidence Code Section 452(d) of the following:

1. Plaintiff's Complaint, filed on or about February 3, 2026, a true and correct copy of which is attached to the Declaration of Ali Ameripour as Exhibit 2.

However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are subject to interpretation. (See *L.B. Research & Education Foundation v. UCLA Foundation* (2005) 130 Cal.App.4th 171, 180, fn. 2, citing *Comings v. State Bd. of Education* (1972) 23 Cal.App.3d 94.)

LEGAL STANDARD

California Code of Civil Procedure section 1281 provides that "[a] written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable, and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.) "California law, like federal law, favors enforcement of valid arbitration agreements." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97 (*Armendariz*)). "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that

controversy, the court shall order the petitioner and the respondent to arbitrate the controversy” unless grounds exist not to compel arbitration. (Code Civ. Proc., § 1281.2.) The Song-Beverly Act also favors arbitration of Lemon Law disputes with a series of “carrot and stick” provisions that immunize a warrantor from a species of civil penalty if they have a certified lemon arbitration program in place. The AAA arbitration provision in Tesla’s contract is not the pre-litigation lemon law arbitration program contemplated by Song-Beverly but rather a litigation diversion provision contemplated by the Federal Arbitration Act and the California Arbitration Act. Tesla’s relevant arbitration agreement do not indicate that federal law controls, so this Tentative Ruling will rest on California law.

“There is no public policy favoring arbitration of disputes which the parties have not agreed to arbitrate.” (Engineers & Architects Assn. v. Community Development Dept. (1994) 30 Cal.App.4th 644, 653.) Nevertheless, the strong public policy promoting private arbitration of civil disputes gives rise to a presumption in favor of arbitrability, compelling the court to construe the terms of the arbitration agreement liberally. (Vianna v. Doctors’ Management Co. (1994) 27 Cal.App.4th 1186, 1189).

DISCUSSION

Defendant moves to compel arbitration in accordance with the arbitration provision found in the Motor Vehicle Order Agreement (“Order Agreement”). (Motion, pp. 6:19-11:25.) The evidence indicates that Plaintiff consented to the arbitration provision within the Order Agreement. (Declaration of Raymond Kim (“Kim Decl.”), ¶¶ 3-8.) Plaintiff does not contest this assertion.

Existence of the Agreement

“ ‘ The party seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement’s enforcement. ’ ” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302, quoting Sandoval-Ryan v. Oleander Holdings LLC (2020) 58 Cal.App.5th 217, 222.) In determining

the existence of an arbitration agreement, courts utilize a “a three-step burden-shifting process.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. [Citations.] A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’” (Ibid, internal citations omitted.) “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence[.]” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a factual dispute” as to the existence of the agreement, the burden shifts back to the arbitration proponent, who must then demonstrate the existence of the agreement by a preponderance of the evidence. (Ibid.)

The Court finds that Defendant has met its initial burden by providing a copy of the arbitration provision included in the Order Agreement. The Arbitration Agreement within the Order Agreement states:

Agreement to Arbitrate. Please carefully read this provision, which applies to any dispute between you and Tesla, Inc. and its affiliates, (together “Tesla”).

If you have a concern or dispute, please send a written notice describing it and your desired resolution to .

If not resolved within 60 days, you agree that any dispute arising out of or relating to any aspect of the relationship between you and Tesla will not be decided by a judge or jury but instead by a single arbitrator in an arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules. This includes claims arising before this Agreement, such as claims related to statements about our products.

We will pay all AAA fees for any arbitration, which will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org.

The arbitrator may only resolve disputes between you and Tesla, and

may not consolidate claims without the consent of all parties. The arbitrator cannot hear class or representative claims or requests for relief on behalf of others purchasing or leasing Tesla vehicles. In other words, you and Tesla may bring claims against the other only in your or its individual capacity and not as a plaintiff or class member in any class or representative action. If a court or arbitrator decides that any part of this agreement to arbitrate cannot be enforced as to a particular claim for relief or remedy, then that claim or remedy (and only that claim or remedy) must be brought in court and any other claims must be arbitrated.

If you prefer, you may instead take an individual dispute to small claims court.

You may opt out of arbitration within 30 days after signing this Agreement by sending a letter to: Tesla, Inc.; P.O. Box 15430; Fremont, CA 94539-7970, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, this agreement to arbitrate overrides any different arbitration agreement between us, including any arbitration agreement in a lease or finance contract.

(Kim Decl., ¶ 7, Exh. 1, p. 3.)

Scope of the Arbitration Agreement

The Court finds that Plaintiff's Complaint asserts several claims concerning alleged defects in the vehicle against Defendant. (Compl., ¶¶ 18-40.) Furthermore, the Court recognizes that the Order Agreement pertains to "any dispute arising out of or relating to any aspect of the relationship between [Plaintiff] and [Tesla, Inc. and its affiliates]." (Kim Decl., ¶ 7, Exh. 1, p. 3.) Consequently, Plaintiff's claims fall under the Order Agreement.

Accordingly, the Court GRANTS Defendant's motion to compel binding arbitration.

Stay Proceedings Pending Arbitration

Tesla moves to stay this action pending arbitration. (Motion, p. 11:15-25.) Code of Civil Procedure section 1281.4

provides that if the court has ordered the arbitration of a controversy, it
“shall, upon motion of a party to such action or proceeding, stay the action or
proceeding until an arbitration is had in accordance with the order to
arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc., § 1281.4.) Therefore, under Code of Civil
Procedure
section 1281.4, the Court will GRANT Tesla’s request to stay this action
because the motion has been GRANTED.

ORDERS

1) Defendant

Tesla, Inc.’s Motion to Compel Binding Arbitration is GRANTED.

2) Defendant

Tesla, Inc.’s Request to Stay Proceedings Pending Arbitration is GRANTED.

3) Tesla

is ordered to give notice of the Court’s ruling.

IT IS SO ORDERED.

DATED: August 4, 2026

Tamara

Hall

Judge

of the Superior Court